

Court No. - 39

Case :- WRIT - C No. - 18768 of 2023

Petitioner :- Vishanu

Respondent :- Dakshinanchal Vidyut Vitran Nigam Limited And 4 Others

Counsel for Petitioner :- Suresh Chandra Pandey

Counsel for Respondent :- Baleshwar Chaturvedi

Hon'ble Salil Kumar Rai,J.

Hon'ble Arun Kumar Singh Deshwal,J.

1. Heard counsel for the petitioner and Shri Sachin Mishra, counsel for respondent Nos. 1, 3, 4 and 5.

2. The present petition has been filed challenging the order dated 21st March, 2022 passed by the fourth respondent-Executive Engineer, Dakshinanchal Vidyut Vitran Nigam Limited, Electricity Supply Centre 1, District-Mathura rejecting the application of the petitioner for new electricity supply connection in the premises of which he alleges to be an occupier as well as against the order dated 6th May, 2022 passed by the second respondent-Commissioner, Electricity Consumer Grievance Redressal Forum, Agra Division, Agra rejecting the application of the petitioner for the same purpose.

3. The relevant facts of the case are that Smt. Radha Devi Tiwari was the original owner of the premises. Smt. Rama Devi Upadhyaya alleges to have purchased the said premises from Smt. Radha Devi Tiwari through registered sale deeds dated 13th September, 2018.

4. Smt. Radha Devi Tiwari instituted Original Suit No. 61 of 2019 for cancellation of sale deeds dated 13th September, 2018 which from the records of the writ petition appears to be still pending. The suit was instituted on 7th February, 2019.

5. It also appears from the records that the original electricity connection in the premises was transferred in favour of the purchaser of the premises and there are dues on the said connection.

6. Smt. Rama Devi Upadhyaya, i.e., purchaser of the premises filed applications before the DVVNL requesting that no new electricity connection be granted to any person for the said

premises.

7. The petitioner claims that he was inducted as tenant in the premises through a lease deed dated 16 November, 2019 by Smt. Radha Devi Tiwari who was the original owner of the premises.

8. Admittedly, the petitioner has been inducted as a tenant after the sale-deed executed in favour of Smt. Rama Devi Upadhyaya, the vendee, and after the institution of original Suit No. 61 of 2019; There is nothing on record to indicate that any interim order was passed in favour of Radha Devi Tiwari in original Suit No. 61 of 2019.

9. It has been stated by the counsel for the petitioner that because of the dues, the electricity connection to the premises has been disconnected by the DVVNL and therefore, the petitioner filed an application for a fresh electricity connection in the premises claiming himself to be an occupier of the premises.

10. The said application of the petitioner has been rejected by the Executive Engineer vide his order dated 21st March, 2022 and by the Commissioner, Electricity Consumer Grievance Redressal Forum, Agra Division, Agra by its order dated 6th May, 2023. As noted earlier, the said orders have been challenged in the present petition.

11. It was argued by the counsel for the petitioner that the petitioner is an occupier of the premises and therefore, under Clause 4.4 of the Electricity Supply Code, 2005 he is entitled to be considered for an electricity connection in the premises. It has been argued by the counsel for the petitioner that he has been inducted as tenant in the suit property by the owner of the premises and is in occupation of the same and is therefore, entitled to electricity supply connection under Clause 4.4 of the Electricity Supply Code, 2005. It was argued that in view of the aforesaid, the impugned orders rejecting the application of the petitioner are contrary to law and liable to be set aside by this Court.

12. In support of his contention, learned counsel for the petitioner has relied on the full Bench judgment of the Calcutta High Court in **Abhimanyu Mazumdar and others vs. The Superintending Engineer and others**, AIR 2011 Cal 64 and also the Division Bench judgments of this Court passed on 26.05.2014 and 18.09.2018 in Writ - C No. 28295 of 2014 and Writ - C No. 8396 of 2018 respectively.

13. We have considered the submissions of the counsel for the petitioner.

14. It may be noted that in his order dated 21st March, 2022 the Executive Engineer has stated that a 5 KW electricity connection is already operative in the premises. In their orders, the Executive Engineer and the Commissioner, Electricity Consumer Grievance Redressal Forum, after considering the litigation and the rival claim of different parties regarding title over the premises have also noted that the application has been filed to grab the premises.

15. We have also considered the records. On perusal of the record, especially the order dated 21st March 2022 and as would be evident on the facts stated above that the petitioner, if he is an occupier of the premises, is in occupation as a tenant inducted in the premises by the erstwhile owner of the premises.

16. The sale-deed executed by the erstwhile owner is a registered document. No interim order passed in favour of the original owner in original Suit No. 61 of 2019 has been brought to the notice of the Court. The lease deed has been admittedly executed in favour of the petitioner after the sale-deeds dated 13.09.2018 and after the institution of the original Suit No. 61 of 2018.

17. Whether the petitioner was given physical occupation of the premises is a question of fact which has to be decided by the appropriate forum. A mere execution of the lease-deed by an owner who has already sold the premises cannot be considered a conclusive evidence of the fact that a lessee is in physical occupation of the premises. The dispute regarding the legality of the lease-deed allegedly executed in favour of the petitioner is also dependent on the decision of the trial court in original Suit No. 61 of 2019, inasmuch as, the original owner of the premises could have leased out the said premises in favour of anyone including the petitioner only if the sale-deed stands cancelled and is found to be invalid by the trial court. It was also argued by the counsel for the petitioner that the petitioner is in settled occupation of the premises. Whether the petitioner is in settled occupation of the premises is a question to be determined on evidence and the Executive Engineer is not the competent authority to decide the said plea raised by the petitioner. The said plea can be decided only in a forum which has the authority to decide disputed questions of fact on evidence. In view of the aforesaid, the facts on record are not sufficient to confer on the petitioner any right for electricity supply connection under Clause 4.4 of the Electricity Supply Code, 2005.

18. Apart from the aforesaid, a reading of Clause 4.3 indicates that a new electricity supply connection can be given only after the dues on the previous connection are satisfied. A reading of Clause 4.3 (f) also shows that the dues have to be satisfied by the owner of the premises.

19. In view of the aforesaid, there is no illegality in the impugned orders passed by the Executive Engineer and the Commissioner, Electricity Consumer Grievance Redressal Forum in rejecting the application of the petitioner on the ground that there are dues on the previous electricity supply connection.

20. On the facts stated in the writ petition and the documents annexed with it, we do not find the petitioner to be entitled to the electricity supply connection.

21. In view of the aforesaid, the judgments referred by the counsel for the petitioner are not applicable in the present case.

22. In view of the aforesaid, we do not find any illegality in the orders dated 21st March, 2022 passed by the fourth respondent- Executive Engineer, DVVNL, Electricity Supply Centre 1, Mathura and 6th May, 2022 passed by the second respondent- Commissioner, Electricity Consumer Grievance Redressal Forum, Agra Division, Agra.

23. The writ petition stands **dismissed**.

Order Date :- 30.5.2023

Mukesh Pal